

Waterworks Regulations

(Cap. 102 sub. leg. A)

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Waterworks Regulations

(Cap. 102, section 37 and Cap. 1, section 29)

[1 January 1975]

(*Format changes—E.R. 2 of 2012*)

Part 1

Preliminary

1. Citation

These regulations may be cited as the Waterworks Regulations.

2. Interpretation

(1) In these regulations, unless the context otherwise requires—

Building Authority (建築事務監督) means the Building Authority under the Buildings Ordinance (Cap. 123);

construction purpose (建造用途), in relation to a supply, means water supplied for use for any purpose connected with the construction of a building or substantial repairs or alterations to a building;

Director (署長) means the Director of Water Supplies;

plumber's licence (水喉匠牌照) means a plumber's licence issued under regulation 34;

shipping purpose (船舶用途), in relation to supply, means water supplied—

- (a) (i) to or for use on any vessel other than a vessel to which paragraph (b)(i) of this definition applies;

- (ii) to any pier for use on any vessel to which subparagraph (i) applies; or
 - (iii) to or for use on any vessel employed for the conveyance of water to any vessel to which subparagraph (i) applies;
 - (b) (i) to or for use on any vessel to which the Merchant Shipping (Local Vessels) Ordinance (Cap. 548) applies; or (*24 of 2005 s. 55*)
 - (ii) to any pier for use on such pier; (*L.N. 219 of 1983*)
- trade purpose** (工商業用途), in relation to a supply, means water supplied for use—
- (a) for any purpose connected with a trade, manufacture or business, other than a construction purpose or shipping purpose; or
 - (b) for any purpose other than a domestic purpose, construction purpose or shipping purpose.
- (2) A reference in these regulations to a number, or any combination of letters, numbers, symbols or punctuation marks, prefixed by the letters “BS” is a reference to a specification forming part of the British Standard issued by the British Standards Institution that bears the number or combination.
 - (3) A reference in these regulations to a number, or any combination of letters, numbers, symbols or punctuation marks, prefixed by the letters “BS EN” is a reference to a specification forming part of the European Standard issued by the British Standards Institution that bears the number or combination.
 - (4) A reference in these regulations to a number, or any combination of letters, numbers, symbols or punctuation marks, prefixed by the letters “BS EN ISO” is a reference to a

specification forming part of the International Standard issued by the British Standards Institution that bears the number or combination.

- (5) A reference in these regulations to a number, or any combination of letters, numbers, symbols or punctuation marks, prefixed by the letters “AS” is a reference to a specification forming part of the Australian Standard issued by the Standards Australia that bears the number or combination.
- (6) A reference in these regulations to a prescribed specification is a reference to a specification referred to in subregulation (2), (3), (4) or (5).

(L.N. 81 of 2017)

Part 2

Fire Services and Inside Services

3. Permission to construct, etc., a fire service

- (1) Where permission is required under the Ordinance to construct, install, alter or remove a fire service, application for such permission shall be made to the Water Authority in such form as may be specified and the application shall be accompanied by such plans, specifications and other information as the Water Authority may require.
- (2) Before submitting an application under subregulation (1), the applicant—
 - (a) *(Repealed L.N. 673 of 1994)*
 - (b) if a new fire service requires a direct connection to the main, shall—
 - (i) obtain from the Water Authority such information as is relevant to the design of the fire service; and
 - (ii) submit to the Water Authority for approval, in such form as he may require, plumbing proposals in respect of the fire service.
- (3) *(Repealed L.N. 673 of 1994)*
- (4) The Water Authority shall decide the size and position of a connection to the main in respect of a fire service.
- (5) The Water Authority shall, if he refuses to grant permission to carry out any works specified in an application under subregulation (1), return the application to the applicant and state the reasons for such refusal.

4. Fees for fire service

(1)-(2) *(Repealed L.N. 78 of 1987)*

- (3) If a seal fixed on a fire service by the Water Authority is broken by any person other than the Water Authority, or a person authorized by him, it shall be replaced by the Water Authority and the consumer responsible for the custody of the fire service shall be liable to pay the charge prescribed in Part 1 of Schedule 1.

(E.R. 2 of 2012)

5. Permission to construct, etc., an inside service

- (1) Where permission is required under the Ordinance to construct, install, alter or remove an inside service, application for such permission shall be made to the Water Authority in such form as may be specified and the application shall be accompanied by such plans, specifications and other information as the Water Authority may require.
- (2) If a new inside service is to be constructed or installed, the applicant shall, before submitting an application under subregulation (1),—
- (a) obtain from the Water Authority such information as is relevant to the design of the inside service; and
 - (b) submit to the Water Authority for approval, in such form as he may require, plumbing proposals in respect of the inside service.
- (3) *(Repealed L.N. 673 of 1994)*
- (4) The Water Authority shall decide the size and position of a connection to the main in respect of an inside service.
- (5) The Water Authority shall, if he refuses to grant permission to carry out any works specified in an application under subregulation (1), return the application to the applicant and state the reasons for such refusal.

6. Inspection and approval of works

- (1) If the construction or installation of a fire service or inside service is carried out with a written permission granted under section 14(2A) of the Ordinance on an application of a licensed plumber, the plumber must apply to the Water Authority in such form as may be specified for— *(11 of 2018 s. 14)*
 - (a) inspection and approval of the fire service or inside service; and
 - (b) a connection to the main and, if necessary, the installation of the part of the fire service or inside service on land held by the Government. *(29 of 1998 s. 105)*
- (2) If the alteration to a fire service or inside service is carried out with a written permission granted under section 14(2A) of the Ordinance on an application of a licensed plumber, the plumber must apply to the Water Authority in such form as may be specified for inspection and approval of the alteration. *(11 of 2018 s. 14)*
- (3) No pipe or fitting forming part of a fire service or inside service shall be used or covered up until it has been inspected and approved by the Water Authority.
- (4) Approval of a fire service or inside service or any alterations thereto may be withheld until any requirement of the Water Authority is complied with.
- (5) If a fire service or inside service is approved by the Water Authority, the Water Authority must, on payment of the charge prescribed in Part 1 of Schedule 1, make the connection to the main and, if necessary, install the part of the fire service or inside service on land held by the Government. *(29 of 1998 s. 105; 11 of 2018 s. 14)*

(E.R. 2 of 2012)

7. Responsibility to keep inside service clean

- (1) Subject to subregulation (2), a consumer shall be responsible for keeping an inside service clean.
- (2) The responsibility for keeping clean any part of an inside service which is—
 - (a) a communal service shall be that of the agent; and
 - (b) on land held by the Government shall be that of the Water Authority. *(29 of 1998 s. 105)*

8. Repairs etc., by Water Authority

- (1) Where the Water Authority carries out any repairs or other works under section 17(3) or (4) of the Ordinance or makes a connection to the main under regulation 6(5) or makes such a connection and installs the part of the fire service or inside service under that regulation or tests any pipe or fitting under regulation 21, the cost thereof shall include— *(L.N. 320 of 1992; L.N. 176 of 1996)*
 - (a) the cost of materials used;
 - (b) the cost of labour;
 - (c) any other expenses incurred in connection therewith; and
 - (d) the supervision charge prescribed in Part 2 of Schedule 1.
- (2) This regulation shall not apply where a charge is prescribed in Part 1 of Schedule 1.

(E.R. 2 of 2012)

9. Use of inside service

Except with the permission in writing of the Water Authority, no

person shall use an inside service for the reception or conveyance of any water other than water from the waterworks in respect of which the inside service is approved.

10. Draw-off points in gardens, etc.

Except with the permission in writing of the Water Authority, no person shall—

- (a) install draw-off points in, or draw water from, any part of an inside service for the supply of fresh water for use in any—
 - (i) garden,
 - (ii) lawn,
 - (iii) playground of any kind,
 - (iv) garage or car park, or
 - (v) other place where the supply is not used for a domestic purpose or other purpose approved by the Water Authority; or
- (b) extend or alter an inside service for the supply of fresh water for any purpose referred to in paragraph (a).

11. Hosepipe not to be connected to an inside service

- (1) No person shall draw fresh water from an inside service by means of a hosepipe or similar apparatus.
- (2) Subregulation (1) shall not apply where fresh water is drawn by means of a hosepipe or similar apparatus—
 - (a) from a cold water cistern approved by the Water Authority for that purpose; or (*L.N. 81 of 2017*)
 - (b) for use in any type of domestic appliance or apparatus approved by the Water Authority.

12. Use of fresh water for flushing

- (1) If in any premises fresh water from the waterworks is, without the permission in writing of the Water Authority, used for flushing water-closets, latrines or urinals, the occupier and the owner of such premises shall be guilty of an offence.
- (2) Where a contravention of subregulation (1) is committed, it shall be a good defence—
 - (a) for the occupier to prove that the contravention was committed without his knowledge or that he had taken reasonable steps to prevent it;
 - (b) for the owner to prove that he has provided, or has taken reasonable steps to provide, water (other than fresh water from the waterworks) for flushing water-closets, latrines or urinals.
- (3) For the purposes of this regulation and regulation 15(3)—

owner (業主) includes any person holding the premises direct from the Government whether under lease, licence or otherwise, any mortgagee in possession and any person receiving rent of the premises, solely or with another, on his own behalf or that of any person, or who would receive the same if such premises were let to a tenant, and the agent of an owner. (29 of 1998 s. 105)

13. Use of water for air-conditioning plants, etc.

Except with the permission in writing of the Water Authority, no person shall use water from the waterworks for—

- (a) any heating, cooling or humidification plant; or
- (b) any swimming pool.

14. (Repealed L.N. 252 of 1977)

15. Use of salt water for flushing

- (1) The Water Authority may require the use of salt water for flushing water-closets, latrines and urinals, and may supply salt water for such purpose.
- (2) The pipes and fittings of water-closets, latrines and urinals in which salt water is used for flushing shall be constructed of material that is suitable for the use of salt water.
- (3) Where under subregulation (1) the Water Authority requires the use of salt water for flushing an existing water-closet, latrine or urinal in which water other than salt water is used, the pipes and fittings of such water-closet, latrine or urinal shall, if necessary, be replaced by the owner of the premises to comply with subregulation (2).

16. *(Repealed L.N. 85 of 1979)*

17. Disconnection or reconnection of supply at consumer's request

- (1) A consumer who wants a fire service or inside service to be disconnected shall apply to the Water Authority in such form as may be specified giving not less than 14 days' notice of the date on which the disconnection is to be made.
- (2) A consumer who wants a fire service or inside service, which has been disconnected under subregulation (1), to be reconnected shall apply to the Water Authority in such form as may be specified giving not less than 14 days' notice of the date on which the reconnection is to be made.

(L.N. 320 of 1992)

18. Method of disconnection

- (1) Disconnection of a fire service or inside service under section 10 or 19 of the Ordinance or regulation 17(1) or 28(1) may

be effected by severing the fire service or inside service from the main or by any other means as the Water Authority thinks fit.

- (2) A fire service or inside service which is disconnected under subregulation (1) may be reconnected by the Water Authority—
- (a) on compliance by the consumer or agent with any requirement of the Water Authority relating to the reason for the disconnection; and
 - (b) on payment of the charge for reconnecting a fire service or inside service prescribed in Part 1 of Schedule 1.

(E.R. 2 of 2012)

Part 3

Pipes and Fittings

19. Pipes and fittings

- (1) Subject to subregulations (2), (3), (4), (5) and (6) and regulation 19A, this Part and Schedule 2 shall apply to any pipe or fitting installed or intended to be installed in any fire service or inside service. (*L.N. 320 of 1992; L.N. 673 of 1994; L.N. 106 of 1999; L.N. 81 of 2017*)
- (2) This Part and Schedule 2 shall not apply to any pipe or fitting installed before the commencement of these regulations in accordance with any enactment then in force and no person shall be required to alter or renew any such pipe or fitting unless such pipe or fitting is in the opinion of the Water Authority so defective or in such condition as to cause, or be likely to cause, waste, undue consumption or pollution of the supply.
- (3) The amendments to this Part and to Schedule 2 effected by the Waterworks (Amendment) (No. 2) Regulation 1992 (L.N. 320 of 1992) shall not apply to any pipe or fitting installed before the commencement of that Regulation, and no person shall be required to alter or renew any such pipe or fitting by virtue of those amendments unless such pipe or fitting is in the opinion of the Water Authority so defective or in such condition as to cause, or be likely to cause, waste, undue consumption or pollution of the supply. (*L.N. 320 of 1992*)
- (4) The amendment to Schedule 2 effected by section 4 of the Waterworks (Amendment) Regulation 1994 (L.N. 673 of 1994) shall not apply to any pipe or fitting installed before the commencement of that section, and no person shall be

required to alter or renew any such pipe or fitting by virtue of the amendment unless such pipe or fitting is in the opinion of the Water Authority so defective or in such condition as to cause, or be likely to cause, waste, undue consumption or pollution of the supply. (*L.N. 673 of 1994*)

- (5) The amendment to Schedule 2 effected by section 4 of the Waterworks (Amendment) Regulation 1994 (*L.N. 673 of 1994*) shall not apply to alterations or repairs which—
- (a) are made to a pipe or fitting installed before the commencement of that section; and
 - (b) are, in the opinion of the Water Authority, of a minor nature. (*L.N. 673 of 1994*)
- (6) The amendments to Schedule 2 effected by section 3 of the Waterworks (Amendment) Regulation 1999 (*L.N. 106 of 1999*) shall not apply to any water heater installed before the commencement of that section, and no person shall be required to alter or renew any such water heater by virtue of those amendments unless such water heater is in the opinion of the Water Authority so defective or in such condition as to cause, or be likely to cause, waste, undue consumption or pollution of the supply. (*L.N. 106 of 1999; 32 of 2000 s. 48*)

19A. Effect of amendments to this Part and Schedule 2 on pipes and fittings installed

- (1) If this Part or Schedule 2 is amended by a specified enactment, no person is required to alter or renew a pipe or fitting installed before the enactment comes into operation merely because, on the coming into operation of the enactment, the pipe or fitting does not comply with a requirement introduced by the enactment.

- (2) In this regulation—

specified enactment (指明成文法則) means—

- (a) the Waterworks (Amendment) Regulation 2017; or
- (b) any other enactment that comes into operation after the commencement date of the Waterworks (Amendment) Regulation 2017.

(L.N. 81 of 2017)

20. Compliance with prescribed specification

(L.N. 81 of 2017)

- (1) A requirement in Schedule 2 for a pipe or fitting to comply with a prescribed specification is a requirement to comply with the specification to the extent that the specification relates to the size, nature, materials, strength, test requirements and workmanship of the pipe or fitting.
- (2) A departure from a prescribed specification for a pipe or fitting does not amount to non-compliance with the specification for the pipe or fitting if (and only if) the departure does not, in the opinion of the Water Authority, adversely affect—*(L.N. 165 of 2017)*
 - (a) the efficiency of the fire service or inside service in which the pipe or fitting is installed in providing a reliable and adequate supply of water; and
 - (b) the quality of the water.
- (3) The Water Authority may at any time weigh, measure, inspect, examine or test a pipe or fitting to ascertain whether it complies with a prescribed specification.

(L.N. 81 of 2017)

21. Testing of pipes and fittings

- (1) The Water Authority may require any pipe or fitting, before it is installed or used, to be tested.

- (2) A pipe or fitting which is required to be tested under subregulation (1) shall be delivered to the place specified by the Water Authority and the cost of the testing shall be payable by the person by whom, or on whose behalf, the pipe or fitting is so delivered.

(L.N. 320 of 1992)

22. Protection of pipes

A pipe made of steel if laid under the ground shall be installed in such a manner that it does not come into contact with concrete, cement mortar, lime mortar or plaster and shall be protected against such contact by wrapping it with hessian or other suitable material and coating it with bitumen or where such pipe passes through a wall or suspended floor it may be protected against such contact by being carried through a sleeve or by some other suitable means.

(L.N. 320 of 1992)

23. Booster pumps

- (1) Except with the permission in writing of the Water Authority, no person shall install or use a booster pump on a fire service or inside service.
- (2) A booster pump shall not pump water direct from a main but from a sump installed at a level at which it can be supplied with water from a main by gravity. *(L.N. 252 of 1977)*

24. Other water using apparatus

An apparatus using water in respect of which no express provision is made in these regulations or an apparatus for the treatment or filtration of water shall not be installed or used without the permission in writing of the Water Authority and he may require any such apparatus to be supplied with water from a separate cistern.

(L.N. 81 of 2017)

25. Power to relax regulations

- (1) The Water Authority may, either generally or in any particular case, relax the provisions of these regulations regarding the size, nature, materials or disposition of any pipe or fitting.
- (2) Despite a requirement in Schedule 2 for a pipe or fitting to comply with a prescribed specification, the Water Authority may approve the installation of a pipe or fitting that does not comply with the specification. *(L.N. 81 of 2017)*
- (2A) The Water Authority may approve the installation of a pipe or fitting under subregulation (2) only if the installation does not, in the opinion of the Water Authority, adversely affect—
 - (a) the efficiency of the fire service or inside service in which the pipe or fitting is installed in providing a reliable and adequate supply of water; and
 - (b) the quality of the water. *(L.N. 165 of 2017)*
- (3) Where water is—
 - (a) supplied through a meter;
 - (b) discharged into a cistern from a point not less than 150 mm above the overflowing level thereof; and *(L.N. 252 of 1977)*
 - (c) conveyed therefrom for use in some industrial or research process and is used solely in connection therewith,the Water Authority may exercise his powers under subregulation (1) with regard to any pipe or fitting installed or used for such purpose.

Part 4

Meters

26. Installation of meters

- (1) The Water Authority shall determine the size and the number of meters which shall be installed on any fire service or inside service.
- (2) Subject to subregulation (2A), all meters shall be provided by the Water Authority. *(L.N. 320 of 1992)*
- (2A) Where a meter is to be installed on a fire service or inside service, the Water Authority—
 - (a) if he wishes to do so, may, on payment of the charge prescribed in Part 1 of Schedule 1, provide and install a meter; or
 - (b) if he does not so wish, shall, on payment of the charge prescribed in Part 1 of Schedule 1, provide a meter and allow it to be installed by any of the following persons in the manner specified by the Water Authority—*(L.N. 320 of 1992; 11 of 2018 s. 15)*
 - (i) a licensed plumber; *(11 of 2018 s. 15)*
 - (ii) a registered plumbing worker; *(11 of 2018 s. 15)*
 - (iii) a registered plumbing worker (provisional). *(11 of 2018 s. 15)*
- (2B) Where a meter is installed otherwise than by the Water Authority, he may refuse to connect the supply until the installation has been inspected and approved by him. *(L.N. 320 of 1992)*
- (3) If the seal fixed on a meter by the Water Authority is broken by any person other than the Water Authority or any person

authorized by him it shall be replaced by the Water Authority and the consumer responsible for the custody of the meter shall be liable to pay the charge prescribed in Part 1 of Schedule 1.

- (4) No consumer shall permit any meter to be removed from a fire service or inside service unless the person seeking to remove such meter presents to the consumer a written authority from the Water Authority authorizing him to remove such meter.
- (5) The Water Authority may change a meter at any time.

(E.R. 2 of 2012)

27. Site of meters

- (1) The siting of a meter shall be determined by the Water Authority and he may install the meter at a point most convenient to him on any wall (internally or externally) of a building in which there is a fire service or inside service. *(L.N. 320 of 1992)*
- (2) If access to a meter by the Water Authority is persistently obstructed or denied, the Water Authority may, after consulting the consumer, by notice in writing served on the consumer determine another siting of the meter on any wall (internally or externally) of the building. *(L.N. 320 of 1992)*
- (3) If another siting is so determined, the consumer shall, at his own cost, cause such works to be carried out as will enable the Water Authority to install a meter at the other site and, until such works are carried out, the service shall be regarded as not complying with the Ordinance. *(L.N. 320 of 1992)*

28. Damage to meters

- (1) Where a meter is—

- (a) opened up whilst in the custody of the consumer other than by the Water Authority or any person authorized by him;
- (b) so used that water can be wasted, misused or unduly consumed;
- (c) damaged by breaking the seal or lock on it or otherwise; or
- (d) interfered with so that it impairs or falsifies the measurement of consumption,

the Water Authority may immediately disconnect the supply and repair the meter.

- (2) Where a meter is damaged and the Water Authority is of the opinion that such damage is not the result of fair wear and tear, or where a meter is interfered with, the consumer responsible for the custody of the meter shall, without prejudice to any penalty provided for the offence, be liable to pay—

- (a) the charge prescribed in Part 1 of Schedule 1 for testing the meter;
- (b) the cost of repairing the meter;
- (c) any damage or loss suffered thereby by the Water Authority; and
- (d) the charge prescribed in Part 1 of Schedule 1 for reconnecting the fire service or inside service.

(E.R. 2 of 2012)

29. Reading of meters

- (1) Meters shall be read at such intervals as the Water Authority may direct.

- (2) The reading taken as the last reading for any period shall be used as the first reading for the period next following.

30. Testing of meters

- (1) A consumer who doubts the accuracy of a meter which measures his consumption may apply to the Water Authority in such form as may be specified to have the meter tested and the Water Authority shall test the meter in such manner as he thinks fit and the results of the test shall be binding on the Water Authority and the consumer.
- (2) A meter shall be deemed to register correctly if its inaccuracy does not exceed 3 per cent above or below the correct amount.
- (3) If a meter is found to register correctly the consumer shall pay the charge prescribed in Part 1 of Schedule 1 for testing the meter, but no charge shall be payable if the meter is found to over-register or to under-register. (*L.N. 219 of 1983*)

(*E.R. 2 of 2012*)

31. Consumption where supply is not measured by meter

The consumption for any period during which a meter is known or suspected to be out of order, has been removed or is missing or inaccessible shall be calculated—

- (a) according to the average daily rate of consumption obtained between any successive readings before that period; or
- (b) at the discretion of the Water Authority, according to the average daily rate of consumption between any successive readings following the repairing or replacement of a meter that was out of order; or
- (c) where it would be inappropriate to calculate the consumption in the manner specified in paragraph (a) or

(b), whether by reason of fluctuations in consumption or otherwise, in such manner as may be agreed between the Water Authority and the consumer.

(L.N. 320 of 1992)

32. Private check meter

- (1) A private check meter may, with the permission in writing of the Water Authority, be installed on any part of an inside service.
- (2) The Water Authority may at any time require a private check meter installed under subregulation (1) to be tested, and the consumer shall, on payment of the charge prescribed in Part 1 of Schedule 1, get the meter tested by the Water Authority.
- (3) The Water Authority shall, in assessing consumption at any inside service, take no account of the readings of a private check meter.
- (4) The Water Authority shall not be responsible for the accuracy of a private check meter and where such meter is found to be operating unsatisfactorily or restricting the supply to any premises the consumer shall, if so required by the Water Authority, remove the meter.

(E.R. 2 of 2012)

Part 5

Licensing of Plumbers

32A. Authority for grant of plumber's licence

- (1) Plumber's licences may be issued by an officer designated for the purpose by the Water Authority.
- (2) The officer designated under subregulation (1) is referred to in this Part as *the licensing authority*.
- (3) The licensing authority shall be assisted by an advisory board appointed by the Water Authority and which shall have such members and be appointed on such terms as the Water Authority may direct.
- (4) In exercising his functions under this Part the licensing authority shall consult the board appointed under subregulation (3).

(L.N. 219 of 1983)

33. Application for plumber's licence

- (1) Any person who—
 - (a) holds a Craft Certificate in Plumbing and Pipefitting issued by the Vocational Training Council after 1987; or
(57 of 1999 s. 3)
 - (b) *(Repealed 57 of 1999 s. 3)*
 - (c) holds an equivalent qualification,and who holds a Certificate in Plumbing Services (Hong Kong) issued by the Vocational Training Council or an equivalent qualification may apply for a plumber's licence.

- (2) Application for a plumber's licence shall be made in such form as may be specified.
- (3) In this regulation—
equivalent (相等) means equivalent in the opinion of the Water Authority.

(L.N. 320 of 1992)

34. Issue of plumber's licence

- (1) On receipt of an application under regulation 33(1) and the fee prescribed in Part 1 of Schedule 1 the licensing authority shall, subject to subregulation (2), issue a plumber's licence.
(L.N. 320 of 1992)
- (2) If an applicant for a plumber's licence relies in his application on any qualification referred to in regulation 33(1) that he obtained 5 or more years before the date of his application, the licensing authority shall not issue a plumber's licence unless he is satisfied that the applicant has adequate knowledge of—
 - (a) the type of work involved in respect of a plumber's licence; and
 - (b) the provisions of the Ordinance relating to such work.
(L.N. 320 of 1992)
- (2A)-(2B) *(Repealed L.N. 320 of 1992)*
- (3) Subject to subregulation (3A), the licensing authority shall renew a plumber's licence, even if that licence has expired, on receipt of an application in such form as may be specified and the fee prescribed in Part 1 of Schedule 1. *(L.N. 320 of 1992)*
- (3A) If a licensed plumber fails to renew his licence for 5 or more years, the licensing authority shall not renew his licence

unless the licensing authority is satisfied that the applicant for renewal has adequate knowledge of—

- (a) the type of work involved in respect of the licence which is sought to be renewed; and
- (b) the provisions of the Ordinance relating to such work.
(L.N. 320 of 1992)

(3B) Without prejudice to any other steps which the licensing authority may take for the purpose of satisfying himself that an applicant has the knowledge required by subregulation (2) or (3A), the licensing authority may require the applicant to pass an examination held for the purposes of this regulation.
(L.N. 320 of 1992)

(3C) An applicant for a plumber's licence who is required to undergo an examination pursuant to subregulation (3B) shall pay the examination fee prescribed in Part 1 of Schedule 1.
(L.N. 320 of 1992)

(3D) The licensing authority may require an applicant for a plumber's licence or for the renewal of a plumber's licence to attend in person at a specified office of the Water Authority in order to collect the licence or renewed licence and may, if the applicant fails to do so, refuse to issue or renew the licence.
(L.N. 320 of 1992)

(4) An applicant for a plumber's licence who is aggrieved by the refusal of the licensing authority to issue or renew a plumber's licence or by any limitation or condition imposed by the licensing authority on the issue of a plumber's licence may, within 14 days after the receipt of a notice of such refusal or the imposition of the limitation or condition, appeal to the Water Authority whose decision shall be final.

(E.R. 2 of 2012)

35. Grades of plumbers' licences

- (1) A plumber's licence issued under regulation 34 pursuant to an application received before the commencement of the Waterworks (Amendment) (No. 2) Regulation 1992 (*L.N. 320 of 1992*) may be of either of the following grades and shall be valid for the type of work indicated in the licence—
 - (a) Grade I— For the construction, installation, maintenance, alteration, repair or removal of a fire service or inside service of any type.
 - (b) Grade II—
 - (i) For the maintenance and repair of a fire service or inside service; and
 - (ii) for the installation, maintenance, repair or removal of water appliances.
- (2) A plumber's licence issued under regulation 34 pursuant to an application received after the date referred to in subregulation (1) shall, subject to subregulation (3), be a Grade I licence, valid for the construction, installation, maintenance, alteration, repair or removal of a fire service or inside service of any type.
- (3) The licensing authority may impose any limitation or condition as he thinks fit on the type of work which may be carried out by a holder of a plumber's licence.

(L.N. 320 of 1992)

36. Plumber's licence

- (1) A plumber's licence shall be in such form as may be specified.
- (2) Subject to regulation 37, a plumber's licence shall be valid up till and including 31 December in the year in which it is issued and may be renewed annually under regulation 34(3) for a further period of 12 months from the date of expiry.

37. Power to cancel plumber's licence

- (1) The licensing authority may cancel a plumber's licence at any time if—
 - (a) he is satisfied that the plumber's licence was obtained by misrepresentation or fraud; or
 - (b) the holder contravenes any of the provisions of the Ordinance in respect of the construction, installation, maintenance, alteration, repair or removal of a fire service or inside service.
- (2) The licensing authority may suspend a plumber's licence for any period not exceeding 6 months for any contravention specified in subregulation (1)(b).
- (3) Any person who is aggrieved by the cancellation or suspension of a plumber's licence may, within 14 days after the receipt of the notice of cancellation or suspension, appeal to the Water Authority whose decision shall be final.

38. *(Repealed L.N. 320 of 1992)*

Part 6

Public Standpipes

39. Use of public standpipes

- (1) Fresh water from a public standpipe shall be taken away only in a bucket or any other suitable receptacle and in such a manner as to prevent waste.
 - (2) No person shall draw water from a public standpipe by means of a hosepipe or similar apparatus.
 - (3) No person, other than the Water Authority or a person authorized by him, shall prevent any other person from taking water from a public standpipe.
-

Part 7

Fishing

40. Interpretation

For the purposes of this Part—

authorized officer (獲授權人員) means—

- (a) a police officer;
- (b) *(Repealed 47 of 1997 s. 10)*
- (c) *(Repealed 11 of 2024 s. 19)*
- (d) an authorized officer under the Forests and Countryside Ordinance (Cap. 96);
- (e) an authorized officer or a fisheries inspector under the Fisheries Protection Ordinance (Cap. 171); or
- (f) a person authorized in writing by the Water Authority;
(14 of 1993 s. 15)

fishing licence (釣魚牌照) means a licence issued under regulation 42;

toxic substance (有毒物質) means any substance specified in Schedule 1 to the Fisheries Protection Ordinance (Cap. 171).
(13 of 2012 s. 19)

41. Fishing under licence

- (1) No person shall fish in waters forming part of the waterworks except under and in accordance with the terms of a fishing licence.
- (2) No person shall catch fish in waters forming part of the waterworks by any means other than by rod and line.

- (3) No person shall use any explosive or toxic substance to catch or destroy fish in waters forming part of the waterworks.

42. Issue of fishing licence

- (1) The Water Authority may, on payment of the fee prescribed in Part 1 of Schedule 1, issue a licence to fish in waters forming part of the waterworks.
- (2) A fishing licence shall—
 - (a) be in such form as may be specified;
 - (b) be valid for the period of time stated therein;
 - (c) be for the use of one rod and line;
 - (d) not be transferable; and
 - (e) be subject to any other condition stated therein.

(E.R. 2 of 2012)

43. Powers of inspection and arrest

- (1) If an authorized officer finds a person fishing or has reasonable grounds for believing that a person has been fishing or is about to fish in waters forming part of the waterworks he may require such person to produce for inspection his fishing licence.
- (2) If an authorized officer has reasonable grounds for believing that a person has committed an offence under regulation 44, he may—
 - (a) arrest such person;
 - (b) seize any fish in his possession; and
 - (c) seize any net or other appliance or thing for catching or destroying fish, whether in the possession of such person or not, in respect of which he has reason to believe the offence has been committed.

- (3) Where an authorized officer arrests a person under subregulation (2) he shall forthwith take such person to the nearest police station and shall there hand him over to the custody of a police officer and thereupon the provisions of section 52 of the Police Force Ordinance (Cap. 232) shall apply.

44. Offences

Any person who—

- (a) contravenes regulation 41;
- (b) contravenes any condition of a fishing licence;
- (c) without lawful excuse fails to comply with a requirement of an authorized officer under regulation 43(1); or
- (d) wilfully resists or obstructs an authorized officer in the exercise of his powers under regulation 43(2) and (3),

shall be guilty of an offence and shall be liable on summary conviction to a fine at level 3.

(L.N. 219 of 1983; L.N. 266 of 2006)

45. Revocation or suspension of fishing licence

If any condition of a fishing licence is contravened, the Water Authority may, without prejudice to the liability of any person for the contravention, revoke or suspend the fishing licence.

Part 8

Miscellaneous

46. Charges for water

The Water Authority shall charge the rates specified in Part 3 of Schedule 1 for fresh water supplied under the Ordinance.

(L.N. 85 of 1979; E.R. 2 of 2012)

Editorial Note:

1. The operation of this regulation is affected by the transitional provision contained in section 6 of L.N. 176 of 1996.
2. The amount of charge payable for the supply of fresh water pursuant to this regulation was reduced for certain periods. See—
 - (a) sections 2(2) and 4 of the Revenue (Variation and Reduction of Fees and Charges) Order 2002 (Cap. 2 sub. leg. R) ;
 - (b) the Waterworks (Reduction of Water Charge) Regulation 2003 (L.N. 130 of 2003).

46A. *(Expired)*

46AB. Charge concessions for fresh water supplied for several non-domestic purposes between December 2019 and July 2023

(L.N. 178 of 2020; L.N. 37 of 2021; L.N. 187 of 2021; L.N. 30 of 2022; L.N. 224 of 2022)

- (1) This regulation applies in relation to the charge for supply of fresh water during the concession period for use for a purpose described in item 1(a), (d), (e) or (f) of Part 3 of Schedule 1 (*fresh water charge*).

- (2) Despite regulation 46 and subject to subregulation (3), the amount of fresh water charge is reduced by 75%.
- (3) The amount that may be reduced under subregulation (2) in relation to each meter covered by a water bill must not exceed the maximum amount calculated in accordance with the following formula—

$$\text{maximum amount} = \$657.68 \times \begin{array}{l} \text{number of days that are} \\ \text{covered by the water bill} \\ \text{and that fall within the} \\ \text{concession period.} \end{array}$$

- (4) If—
- (a) the Water Authority issued, on a day before 29 April 2020 (***billing day***), a water bill that covered the concession period (or a part of it);
 - (b) the amount of fresh water charge (or a part of it) demanded in the bill has been paid (whether before, on or after 29 April 2020); and
 - (c) the amount so paid is in excess of the amount of fresh water charge that should have been charged had this regulation been in force on the billing day,
- the Water Authority must refund the excess payment.
(*L.N. 178 of 2020*)

- (5) In this regulation—

concession period (寬免期) means the period from 1 December 2019 to 31 July 2023 (both dates inclusive); (*L.N. 178 of 2020; L.N. 37 of 2021; L.N. 187 of 2021; L.N. 30 of 2022; L.N. 224 of 2022*)

water bill (水費單) means a water bill issued by the Water Authority for a charge for fresh water.

(*L.N. 54 of 2020*)

46AC. Charge concessions for fresh water supplied for several non-domestic purposes between 15 January 2026 and 14 January 2027

- (1) This regulation applies in relation to the charge for supply of fresh water during the concession period for use for a purpose described in item 1(a), (d), (e) or (f) of Part 3 of Schedule 1 (*fresh water charge*).
- (2) Despite regulation 46 and subject to subregulation (3), the amount of fresh water charge is reduced by 50%.
- (3) The amount that may be reduced under subregulation (2) in relation to each meter covered by a water bill must not exceed the maximum amount calculated in accordance with the following formula—

$$\text{maximum amount} = \$328.84 \times \begin{array}{l} \text{number of days that are} \\ \text{covered by the water bill} \\ \text{and that fall within the} \\ \text{concession period.} \end{array}$$

- (4) In this regulation—

concession period (寬免期) means the period from 15 January 2026 to 14 January 2027 (both dates inclusive);

water bill (水費單) means a water bill issued by the Water Authority for a charge for fresh water.

(L.N. 6 of 2026)

46B. Examination of water sample

- (1) The Water Authority shall, upon being requested to do so and upon payment of the fee prescribed in Part 4 of Schedule 1, carry out an examination of a water sample from any supply and shall issue to the person who requested the examination a report of the results of such examination.

- (2) An additional copy of any report issued under subregulation (1) may be issued to any person requesting the same upon payment of the fee prescribed in Part 4 of Schedule 1.

(L.N. 40 of 1985; E.R. 2 of 2012)

47. Prohibition of sale of water

- (1) A person must not, without the permission in writing of the Water Authority, sell or offer for sale water from the waterworks. *(7 of 2024 s. 4)*
- (2) For the purposes of subregulation (1), a person is to be regarded as selling water from the waterworks to another person if the person charges that other person for using the water, and offer for sale is to be construed accordingly. *(7 of 2024 s. 4)*
- (3) To avoid doubt, for the purposes of this regulation, subregulation (2) does not limit the meaning of “sell” and “offer for sale”. *(7 of 2024 s. 4)*
- (4) Subregulation (1) does not prohibit a person from receiving, after a water bill is issued by the Water Authority for an inside service, from a specified user of the inside service the reimbursement of the specified charges, or a proportionate portion of the specified charges, for water used by the specified user in the premises in which the inside service exists during the period covered by the bill. *(7 of 2024 s. 4)*
- (5) Subregulation (1) also does not prohibit a person from requesting a specified user of an inside service to reimburse the person for the specified charges, or a proportionate portion of the specified charges, for water used by the specified user in the premises in which the inside service exists. *(7 of 2024 s. 4)*
- (6) A person who contravenes subregulation (1) commits an offence and is liable on a first conviction to a fine at level 3,

and on a subsequent conviction to a fine at level 4. (*7 of 2024 s. 4*)

- (7) On the conviction of a person (***seller***) of an offence under subregulation (6) for selling water from the waterworks to another person (***buyer***), the magistrate must order the seller to repay to the buyer any money received from the buyer for the water in excess of that the seller may lawfully receive by reason of subregulation (4), unless the magistrate, having regard to all the circumstances, considers it inappropriate to do so. (*7 of 2024 s. 4*)

- (8) In this regulation—

specified charges (指明收費), in relation to water used in any premises, means charges for the water calculated at a rate not exceeding the specified rate for the premises;

specified rate (指明收費率), in relation to any premises, means a rate specified in Part 3 of Schedule 1 that corresponds to the consumption in the premises;

specified user (指明用者), in relation to an inside service, means a person who—

- (a) occupies the premises in which the inside service exists; and
- (b) uses in the premises water supplied through the inside service. (*7 of 2024 s. 4*)

47A. Water Authority's supplementary powers for regulation 47

- (1) For the purposes of regulation 47, the Water Authority may by notice request any relevant person of any premises to provide any information relating to, or any reference document for, the premises to the Water Authority.
- (2) The Water Authority may also specify in the notice—

- (a) the time and place at which any information or reference document is to be provided; or
 - (b) the way and form in which any information or reference document is to be provided.
- (3) A person who, without reasonable excuse, fails to comply with a request made under subregulation (1) commits an offence and is liable on conviction to a fine at level 3 and, in the case of a continuing offence, to a further fine of \$1,000 for each day during which the offence continues.
- (4) The Water Authority may disclose any information or reference document obtained for the purposes of regulation 47 to a specified person if the Water Authority considers that the disclosure will enable or assist the specified person to exercise a power (including a right) conferred, or perform a function (including a duty) imposed, on the person by—
 - (a) regulation 47, 47B or 47C; or
 - (b) Part IVA of the Landlord and Tenant (Consolidation) Ordinance (Cap. 7).
- (5) In this regulation—
 - reference document*** (參考文件), in relation to any premises—
 - (a) means a document relating to—
 - (i) a tenancy of the premises; or
 - (ii) any consumption in the premises; and
 - (b) includes a tenancy in writing and an invoice, a bill, demand note, payment record, and receipt, for rent or charges for water;
 - relevant person*** (相關人士), in relation to any premises, means—
 - (a) an owner or a former owner of the premises;
 - (b) a consumer or former consumer of the inside service that exists in the premises;

- (c) a person other than the Water Authority who has charged an occupier or a former occupier of the premises for using water supplied through the inside service that exists in the premises;
- (d) a tenant or former tenant, or sub-tenant or former sub-tenant, of the premises;
- (e) an occupier or a former occupier of the premises; or
- (f) an agent or a former agent of a person referred to in paragraph (a), (b), (c), (d) or (e);

specified person (指明人士) means—

- (a) a magistrate; or
- (b) a public officer acting in the capacity of a public officer.

(7 of 2024 s. 5)

47B. Providing false or misleading information or documents

- (1) A person commits an offence if the person—
 - (a) in purported compliance with a request made under regulation 47A(1) to provide any information or document to the Water Authority—
 - (i) says or states anything (when providing the information or document) that is false or misleading in a material particular; or
 - (ii) provides any document that is false or misleading in a material particular; and
 - (b) knows that, or is reckless as to whether or not, the thing said or stated, or the information or document, is false or misleading in a material particular.
- (2) A person who commits an offence under subregulation (1) is liable on conviction to a fine at level 4 and to imprisonment for 6 months.

(7 of 2024 s. 5)

47C. Duties to give, and keep copies of, receipts for charges for water

- (1) This regulation applies if—
 - (a) a person other than the Water Authority charges a specified user of an inside service for using water supplied through the inside service; and
 - (b) the specified user pays the person (*payee*) an amount of charges.
- (2) The payee must give a receipt to the specified user for the amount within 7 days after the date on which the amount is paid.
- (3) The payee must specify the following in the receipt—
 - (a) the names of the specified user and the payee;
 - (b) the address of the specified user;
 - (c) the amount of charges paid;
 - (d) the period to which the charges relate;
 - (e) the date of payment.
- (4) The payee must keep a copy of the receipt for 2 years beginning on the date of payment specified in the receipt.
- (5) If the payee, without reasonable excuse, contravenes subregulation (2), (3) or (4), the payee commits an offence and is liable on conviction to a fine at level 3.
- (6) In this regulation—

specified user (指明用者) has the meaning given by regulation 47(8).

(7 of 2024 s. 5)

47D. Burden of proof

In criminal proceedings for an offence under regulation 47A(3) or 47C(5)—

- (a) the burden of establishing that a person has a reasonable excuse referred to in that regulation lies on the person; and
- (b) the person is taken to have established the reasonable excuse if—
 - (i) there is sufficient evidence to raise an issue with respect to the reasonable excuse; and
 - (ii) the contrary is not proved by the prosecution beyond reasonable doubt.

(7 of 2024 s. 5)

48. Validity of notices

Any notice, form or other document under the Ordinance may bear the name of the Water Authority or other person authorized by him and every such notice, form or other document shall be valid if the name of the Water Authority or such authorized person is printed thereon.

49. Service of notice, etc.

- (1) Any notice, form or other document under the Ordinance may be served—
 - (a) by delivering it personally to the person on whom it is to be served;
 - (b) by sending it by post to the last known address of the person on whom it is to be served;
 - (c) by leaving it at the residence or place of business of the person on whom it is to be served; or

- (d) by posting it in a conspicuous place upon the premises to which it relates.
- (2) Notwithstanding subregulation (1), where a notice is of general application to consumers or agents the notice may be published in such English and Chinese language newspapers circulating in Hong Kong as may be approved for the purpose by the Water Authority.

50. Time limit for payment of charges and levy of surcharge

- (1) Payment of a charge due shall be made on or before the date specified in the notice of demand. (*L.N. 118 of 1988*)
- (2) Where a charge remains unpaid for a period of 6 months, or less, from the date specified in the notice of demand, the Water Authority or Director of Accounting Services may add to the unpaid charge a surcharge not exceeding 5% of the unpaid charge and recover the total amount of the unpaid charge and surcharge. (*L.N. 16 of 1977*)
- (3) Where a charge remains unpaid for a period exceeding 6 months from the date specified in the notice of demand, the Water Authority or Director of Accounting Services may add to the total amount of— (*L.N. 16 of 1977*)
 - (a) the unpaid charge; and
 - (b) any surcharge added thereto under subregulation (2), a further surcharge not exceeding 10% of the total amount and recover the total amount and further surcharge.

51. Penalty

- (1) Any person who contravenes regulation 9, 10, 11(1), 12(1), 13, 15(2) or (3), 21(2), 23(1) or (2), 24, 26(4) or 39(1), (2) or (3), or any requirement of the Water Authority under regulation 15(1), 21(1) or 32(2) or (4), commits an offence. (*L.N. 320 of 1992*)

- (2) Any person who commits an offence under subregulation (1) is liable on conviction to a fine at level 3. (*L.N. 219 of 1983; L.N. 266 of 2006*)

(7 of 2024 s. 6)

51A. Time limit for prosecutions

- (1) A prosecution for a contravention of these regulations may be commenced within 6 months beginning on the date immediately after the date on which the contravention is discovered by, or comes to the notice of, the Water Authority.
- (2) This regulation does not apply in relation to a contravention committed before the date on which the Waterworks (Amendment) Ordinance 2018 (11 of 2018) comes into operation.

(11 of 2018 s. 16)

52. Saving

Any—

- (a) notice or account;
- (b) permission; or
- (c) plumber's licence or fishing licence,

given, granted or issued by the Water Authority under the revoked Waterworks Regulations (Cap. 102 sub. leg. 1964), and in force at the commencement of these regulations, shall be deemed to have been given, granted or issued under these regulations.

53. (*Omitted as spent—E.R. 2 of 2012*)

Schedule 1

[regs. 4, 6, 8, 18, 21, 26, 28,
30, 32, 34, 42, 46, 46AB,
46AC & 47]

(L.N. 54 of 2020; 7 of 2024 s. 7; L.N. 6 of 2026)

Part 1

Fees and Charges

Fees and charges payable under the regulations shall be—

1. Under regulation 6(5)—

Making a connection to the main and installing (including reinstatement of the ground surface) the part of a fire service or inside service on land held by the Government— *(29 of 1998 s. 105)*

For each metre
For any length or part of a
of 100 metres metre in excess
and below of 100 metres

(a) Pipes of any size up to and including 20 mm in diameter	\$2,830	\$ 125
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Waterworks Regulations

Schedule 1—Part 1

S1-4

Cap. 102A

	For any length of 30 metres and below	For each metre or part of a metre in excess of 30 metres
(b) Pipes above 20 mm in diameter up to and including 25 mm in diameter.....	\$4,040	\$ 180
(c) Pipes above 25 mm in diameter up to and including 40 mm in diameter	\$5,530	\$ 225
2. Under regulations 18(2) and 28(2)— Reconnecting a fire service or inside service		\$ 420
3. Under regulation 26(2A)— (a) Providing and installing a meter		\$ 460
(b) Providing a meter		\$ 120
4. Under regulations 4(3) and 26(3)— Resealing a fire service or meter		\$ 280
5. Under regulations 28(2), 30(3) and 32(2)— Testing a meter or a private check meter (including removal and refixing)— (a) any size up to and including 80 mm in diameter		\$ 810
(b) above 80 mm in diameter up to and including 100 mm in diameter		\$ 1,820
(c) above 100 mm in diameter up to and including 150 mm in diameter		\$ 3,170
(d) above 150 mm in diameter up to and including 200 mm in diameter		\$ 3,960
6. Under regulation 34(1) and (2)—		

Waterworks Regulations

Schedule 1—Part 2

S1-6

Cap. 102A

Plumber's licence	\$ 105
7. Under regulation 34(3)— Renewal of plumber's licence	\$ 80
8. Under regulation 34(3C)— Plumber's licence examination	\$ 1,310
9. Under regulation 42— Fishing licence	\$ 33

(L.N. 176 of 1996; L.N. 358 of 2000; L.N. 41 of 2001; L.N. 129 of 2010; L.N. 89 of 2012; L.N. 121 of 2013; L.N. 126 of 2014; L.N. 12 of 2019)

Part 2

Supervision Charge

(Regulation 8)

The charge for supervision of work carried out by the Water Authority, other than work for which a fee is prescribed in this Schedule, shall be 20% of the actual cost of such work.

Part 3

Charge for Fresh Water

(Regulation 46)

1. The charge for fresh water, filtered or unfiltered, per unit of 1 cubic metre (1000 litres) shall be—

(L.N. 176 of 1996)

Waterworks Regulations

Schedule 1—Part 3

S1-8

Cap. 102A

	Charge per unit
(a) for construction purposes	\$ 7.11
(b) for domestic purposes (other than flushing), per 4 month period—	
(i) for the first 12 units	\$ NIL
(ii) for the next 31 units	\$ 4.16
(iii) for the next 19 units	\$ 6.45
(iv) for the remainder	\$ 9.05
(c) for flushing purposes, per 4 month period—	
(i) for the first 30 units	\$ NIL
(ii) for the remainder	\$ 4.58
(d) for shipping purposes referred to in paragraph (a) of the definition of shipping purpose	\$ 10.93
(e) for shipping purposes referred to in paragraph (b) of the definition of shipping purpose	\$ 4.58
(f) for trade purposes	\$ 4.58
(g) for any purpose (other than shipping purposes referred to in paragraph (a) of the definition of shipping purpose) where payment is made against a prepaid ticket issued by the Director of Accounting Services	\$ 4.58
<i>(L.N. 291 of 1996; L.N. 292 of 1996)</i>	

- Where a charge under item 1(b) or (c) of this Part is calculated on a computerized basis, a reference in that item to “4 month period” shall be read as a reference to 121.64 days.

(L.N. 176 of 1996)

Part 4

Charges for Examination of Water

(Regulation 46B)

1. The charge for examination of a water sample shall be—

Charge where
sample delivered
to Water Authority

(a) for a general chemical analysis (comprising all standard tests*)	\$ 3,580
(b) for an individual standard test*	\$ 315
(c) for a non-standard test (other than a non-standard test referred to in paragraph (d) or (e))	\$ 610
(d) for a British Pharmaceutical test for water for injection purposes	\$ 1,420
(e) for a general bacteriological examination ..	\$ 720
2. Charge for each attendance to collect any sample or samples	\$ 1,200
3. Charge for additional copy of examination report	\$ 1.30

* For the purpose of this Part, **standard test** (標準測試) means a test to determine any one of the following—

Waterworks Regulations

Schedule 1—Part 4

S1-12

Cap. 102A

Turbidity;	Nitrite nitrogen;	Total alkalinity;
Ortho-phosphate;	pH value;	Nitrate nitrogen;
Total hardness;	Fluorides;	Colour;
Oxygen absorbed value;	Calcium;	Iron;
Conductivity;	Suspended solids;	Magnesium;
Manganese;	Ammoniacal nitrogen;	Dissolved solids;
Chlorides;	Aluminium;	Albuminoid nitrogen;
Residual chlorine;	Sulphates;	Silica.

*(L.N. 176 of 1996; L.N. 129 of 2010; L.N. 89 of 2012; L.N. 121 of 2013;
L.N. 126 of 2014; L.N. 12 of 2019)*

Schedule 2

[regs. 19, 19A, 20 & 25]
(*L.N. 81 of 2017*)

Part 1

Pipes and Fittings

1. Pipes for a fresh water fire service must be made of ductile iron, steel, stainless steel or copper. (*L.N. 165 of 2017*)
2. Pipes for a salt water fire service must be made of steel and internally lined with chlorinated polyvinyl chloride or of ductile iron.
3. Pipes for a fresh water inside service must be made of ductile iron, unplasticized polyvinyl chloride, polybutylene, steel, stainless steel, copper, polyethylene, crosslinked polyethylene or chlorinated polyvinyl chloride, but pipes made of unplasticized polyvinyl chloride or polyethylene must not be used for a hot fresh water inside service. (*L.N. 165 of 2017*)
4. Pipes for a salt water inside service must be made of ductile iron, unplasticized polyvinyl chloride or polyethylene. (*L.N. 165 of 2017*)
5. A pipe must not be less than 20 mm in nominal diameter, except that a branch pipe may be of 15 mm or more in nominal diameter if its length is not longer than 3 m and it supplies only 1 draw-off point.

6. A bend or curve must not be made in any pipe so as to diminish the waterway or alter the internal diameter of the pipe.
7. Ductile iron pipes and fittings must be of a class appropriate to the duty required and comply with BS EN 545:2010.
8. Steel pipes must—
 - (a) be galvanized;
 - (b) comply with the requirements for tubes in medium or heavy series in BS EN 10255:2004;
 - (c) for a cold fresh water inside service—be internally lined with unplasticized polyvinyl chloride, chlorinated polyvinyl chloride or polyethylene;
 - (d) for a hot fresh water inside service—be internally lined with chlorinated polyvinyl chloride; and
 - (e) for a fresh water fire service—be internally lined with chlorinated polyvinyl chloride or without any lining.
9. Malleable cast iron fittings for use with steel pipes must be galvanized and comply with the relevant requirements in BS 143 and 1256:2000.
10. Fittings made of wrought iron or steel for use with steel pipes must be galvanized and comply with BS EN 10241:2000.
11. Unplasticized polyvinyl chloride pipes and fittings must comply with the requirements for Class D or superior pipes in BS 3505:1986 or the relevant requirements in BS EN ISO 1452-1:2009, BS EN ISO 1452-2:2009, BS EN ISO 1452-3:2010, BS EN ISO 1452-4:2009 and BS EN ISO 1452-5:2009.

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12. Copper pipes incorporating screw joints must comply with BS EN 12449:2016. The screws of the pipes must comply with BS 61:1969.
13. Cast copper alloy fittings, for copper pipes screwed in accordance with Table 1 of BS 61:1969, must comply with the relevant requirements in BS 143 and 1256:2000.
14. Copper pipes to be jointed with mechanical joint fittings or capillary fittings or, by bronze or autogenous welding, must comply with BS EN 1057:2006+A1:2010.
15. Mechanical joint fittings or capillary fittings made of copper or copper alloy must comply with the relevant requirements in BS EN 1254-1:1998, BS EN 1254-2:1998, BS EN 1254-4:1998, BS EN 1254-5:1998, BS EN 1254-6:2012, BS EN 1254-8:2012 and BS 8537:2010. Compression fittings made of copper or copper alloy for pipes laid underground must be of Type B. Soft soldering material must comply with BS EN ISO 9453:2014. Filler metal for brazing must comply with BS EN ISO 17672:2010.
16. Polybutylene pipes and fittings must comply with BS 7291-1:2010 and BS 7291-2:2010.
17. Polyethylene pipes and fittings must comply with BS EN 12201-1:2011, BS EN 12201-2:2011+A1:2013, BS EN 12201-3:2011+A1:2012, BS EN 12201-4:2012 and BS EN 12201-5:2011.
18. Crosslinked polyethylene pipes and fittings must comply with BS 7291-1:2010 and BS 7291-3:2010.

19. Chlorinated polyvinyl chloride pipes and fittings must comply with BS EN ISO 15877-1:2009+A1:2010, BS EN ISO 15877-2:2009+A1:2010 and BS EN ISO 15877-3:2009+A1:2010.
20. Stainless steel pipes must be of grade 304 or better and comply with the relevant requirements in BS 6362:1990, BS EN 10217-7:2014 and BS EN 10312:2002. Stainless steel fittings must comply with AS 3688:2016.
21. Pipe flanges made of steel must comply with BS EN 1092-1:2007+A1:2013. Pipe flanges made of ductile iron must comply with BS EN 1092-2:1997. *(L.N. 165 of 2017)*
22. Flexible pipe joints must comply with the hydraulic test requirements in BS EN 12266-1:2012.
23. Non-metallic materials and products that, when used, may come into contact with water intended for human consumption must comply with the relevant requirements in BS 6920-1:2014, BS 6920-2.1:2014, BS 6920-2.2.1:2000+A3:2014, BS 6920-2.2.2:2000+A1:2014, BS 6920-2.2.3:2000+A2:2014, BS 6920-2.3:2000+A1:2014, BS 6920-2.4:2000+A1:2014, BS 6920-2.5:2000+A2:2014, BS 6920-2.6:2000+A2:2014 and BS 6920-3:2000. *(L.N. 165 of 2017)*

Note—

The products described in this paragraph include, but are not limited to, taps, valves and cold water cisterns mentioned in Parts 2 and 3 of this Schedule.
(L.N. 165 of 2017)

(L.N. 81 of 2017)

Part 2

Taps and Valves

1. *(Repealed L.N. 165 of 2017)*
2. Cast iron or ductile iron waterworks gate valves or check valves of a nominal diameter of not less than 50 mm and with a pressure rating at PN 10 or above must comply with the relevant requirements in BS 5163-1:2004, BS 5163-2:2004, BS EN 1074-1:2000, BS EN 1074-2:2000 and BS EN 1074-3:2000. Gate valves for fire hydrant systems must comply with BS 5041-1:1987.
3. Ball float valves must comply with BS 1212-1:1990, BS 1212-2:1990, BS 1212-3:1990 or BS 1212-4:2016.
4. For ball float valves of a nominal diameter not exceeding 50 mm, their valve bodies must be made of copper alloy or stainless steel. For ball float valves of a nominal diameter exceeding 50 mm, their valve bodies must be made of copper alloy, stainless steel, epoxy coated cast iron or epoxy coated ductile iron.
5. Floats for use with fresh water must be made of copper alloy or stainless steel. Floats for use with salt water must be made of plastic or stainless steel.
6. Copper floats or plastic floats must respectively comply with BS 1968:1953 or BS 2456:1990 if the nominal diameter of the floats does not exceed 300 mm.
7. Ball float valves fitted to a cistern must have the size of the orifice, the size of the float and the length of the lever so proportioned to one another that, when the float is immersed to an extent not

exceeding half its volume, the valve is watertight against the highest pressure at which the valve may be required to work.

8. A ball float valve or float-operated valve fitted to a cistern must be securely fixed to the cistern above the waterline of the float of the valve, and must be supported independently of the inlet pipe (unless the inlet pipe is itself rigid and securely fixed to the cistern), in a position that no part of the body of the valve is submerged when the cistern is charged to the overflowing level.
9. If a ball float valve or float-operated valve is provided with a pipe so arranged as to discharge water into a cistern below its overflowing level, an air hole must be provided in the outlet chamber of the valve above the overflowing level. The air hole must be of a size sufficient to prevent siphonage of water back through the valve.
10. Ball float valves must not be fitted to a cistern that is used to contain heated water.
11. Except with the written permission of the Water Authority, fitting with a threaded outlet, or any device facilitating the connecting of rubber hose or another type of flexible hose, must not be used.
12. Draw-off taps, valves and valve floats for use with salt water must be made of a corrosion-resisting material and comply with the relevant requirements governing the use of fittings with fresh water.
13. The minimum flow rate requirement for taps in any prescribed specification does not apply to draw-off taps.

14. Draw-off taps must—

- (a) for those of a single tap type—comply with BS EN 200:2008;
- (b) for those of a combination tap type—comply with BS EN 200:2008, BS EN 1286:1999 or BS EN 1287:1999;
- (c) for those of a self-closing tap type—comply with BS EN 816:1997; or
- (d) for those of a sensor tap type—comply with BS EN 15091:2013.

15. Gate valves must—

- (a) for those with a copper alloy body—comply with BS EN 12288:2010;
- (b) for those with a steel body—comply with BS EN 1984:2010; or
- (c) for those with a cast iron or ductile iron body and used for general purpose—comply with the relevant requirements in BS EN 1171:2015, BS 5163-1:2004, BS 5163-2:2004, BS EN 1074-1:2000 and BS EN 1074-2:2000.

16. Mixing valves must—

- (a) for those used for a basin or sink—comply with BS EN 200:2008 or BS EN 1286:1999;
- (b) for those used for a shower or bath—comply with BS EN 200:2008, BS EN 1286:1999 or BS EN 1287:1999; or
- (c) for those of a sensor type—comply with BS EN 15091:2013.

17. Globe valves must—
- (a) for those with a copper alloy body—comply with BS 5154:1991;
 - (b) for those with a steel body—comply with BS EN 13709:2010; or
 - (c) for those with a cast iron or ductile iron body—comply with BS EN 13789:2010.
18. Check valves must—
- (a) for those with a copper alloy body—comply with BS 5154:1991;
 - (b) for those with a steel body—comply with BS EN 16767:2016; or
 - (c) for those with a cast iron or ductile iron body—comply with BS EN 12334:2001 or BS EN 16767:2016.
19. Ball valves must—
- (a) for those with a stainless steel body—comply with BS EN 13828:2003; or
 - (b) for those with a copper alloy body—comply with the relevant requirements in BS EN 13547:2013 and BS EN 13828:2003.
20. Butterfly valves must comply with BS EN 593:2009+A1:2011.
21. Pressure reducing valves must comply with BS EN 1567:1999.
- (L.N. 81 of 2017)*

Part 3

Cold Water Cisterns

(L.N. 81 of 2017)

1. No cistern for the storage of cold water shall be installed or used except with the permission in writing of the Water Authority who shall specify the maximum permitted capacity.
2. A cistern must be watertight, of adequate strength, properly supported and be made of concrete, stainless steel or fibre glass.
3. *(Repealed L.N. 81 of 2017)*
4. A cistern must be so located as to minimize the risk of contamination of stored water and be fitted with a suitable close fitting lockable cover that is not airtight. The cover must be so positioned as to facilitate inspection and cleaning.
5. If a cistern for non-potable water is placed adjoining to a cistern for potable water, a physical break must be provided between the cisterns, such that the walls and slabs of the cisterns are separated, however, tie beams linking the cisterns for structural requirements may be fitted and, if fitted, must be constructed in a way that cross contamination of the cisterns via the tie beams is not possible.
6. The inlet of a single cistern fed by a gravity supply must be fitted with a ball float valve and stop valve.
7. The inlet of a single cistern fed by a pumped supply must be fitted with an automatic control switch and without any stop valve.

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- 7A. Each inlet of a twin cistern fed by a pumped supply must be fitted with an automatic control switch and a stop valve for temporary isolation purpose.
- 7B. A ball float valve or automatic control switch installed at the inlet of a cistern must shut off the supply when the water level is 25 mm below the invert of the overflow pipe or warning pipe. The invert of the inlet pipe or the outlet of the ball float valve must not be less than 25 mm above the top of the overflow pipe.
- 7C. All overflow pipes and warning pipes of a potable water cistern must be made of a corrosion-resisting material.
- 7D. An overflow pipe of one commercial size larger than the inlet pipe, and in no case less than 25 mm in nominal diameter, must be fitted to a cistern and be extended to terminate in a conspicuous position. The overflow pipe must not be connected to a drain or sewer or to the overflow pipe from another cistern.
- 7E. A stop valve must be provided at the outlet of a cistern. Provisions must be made for a drain-off pipe to enable the cistern to be emptied.
- 8. No cistern for the storage of fresh water supplied from the waterworks shall, without the written permission of the Water Authority, be so connected that it can be used for the storage of any water other than that supplied from the waterworks.
- 9. Every cistern shall be installed so that it is easily accessible for cleaning or repair. Where a cistern is installed inside a building and, due to limited headroom available, it is fixed with limited clearance from the ceiling or underside of the roof, a quickly

detachable fitting must be used to enable it to be easily removed for cleansing and repair.

10. Safe access shall be provided to all cisterns by means of a secure permanent ladder or readily available portable ladder.

(L.N. 252 of 1977; L.N. 81 of 2017)

Part 4

Hot Water Inside Services

- 1A. This Part applies to—

- (a) a water heater used for heating water not intended for human consumption; and
- (b) a pipe or fitting that, when used, may come into contact with water heated by the water heater. *(L.N. 165 of 2017)*

1. Subject to paragraph 2, a water heater must be supplied with water from a cold water cistern.

2. With the written permission of the Water Authority, a water heater may be connected direct to a main if—

- (a) it has been tested satisfactorily at factory to a pressure at least 1.5 times the maximum static working pressure of the water heater; and
- (b) it is of the following type—
 - (i) a non-pressure type water heater in which no restriction of flow can be effected beyond the inlet control valve;
 - (ii) a cistern type water heater;

- (iii) an instantaneous water heater;
 - (iv) an unvented thermal storage type electric water heater that complies with the safety requirements under the Electrical Products (Safety) Regulation (Cap. 406 sub. leg. G).
- 3. If a water heater is connected direct to a main—
 - (a) every draw-off point of the water heater must not be less than 15 mm above the lowest part of the top edge of the receptacle supplied from the water heater; and
 - (b) if it is a gas water heater—the water heater must be constructed in a way that no leakage of gas into water can occur.
- 4. If mixing valves, water blenders or other combination of fittings are used with a water heater, the cold water supply to those fittings must be drawn from the same source that supplies the water heater in order to provide a balanced pressure and to obviate the risk of scalding if the water supply at the source fails or is restricted for any reason.
- 5. A thermal storage type water heater, other than a water heater of the type specified in paragraph 2(b)(iv), must be provided with an individual expansion pipe at its highest point and the pipe must continuously rise without obstruction until it discharges to atmosphere above the cistern at a sufficient height to prevent a constant outflow of hot water from the water heater via the pipe.
- 6. Taps or other fittings for drawing off water (other than a screwed plug with a removable key for emptying the system for cleansing or repair) must not be connected to any part of the hot water

system below the top of the hot water cylinder in such a way that the level of the water in the cylinder can be lowered.

7. A tap used for drawing hot water must not be fixed at a greater distance (measured along the axis of the pipe by which the tap is supplied) from a hot water fitting, or from a flow and return system, than the distance opposite to the largest nominal diameter of the pipe as shown in the following table—

Table

Largest nominal diameter of pipe	Distance in metres
(a) Not exceeding 22 mm.....	12
(b) Exceeding 22 mm but not exceeding 28 mm	8
(c) Exceeding 28 mm	3

8. A loose jumper type valve fitted with a loose valve plate stopping any backflow, or a similar backflow stopping device, must be fitted at the inlet of a water heater if the water heater is not fitted with a non-return valve. This requirement does not apply to unvented thermal storage type electric water heaters.
9. Pipes used for conveying hot water must be made of steel and internally lined with chlorinated polyvinyl chloride, of copper or of a corrosion-resisting material. (*L.N. 165 of 2017*)
10. A hot water cylinder or tank of a capacity of not less than 100 L must—
- (a) if made of mild steel—comply with the requirements for cylinders or tanks in BS 417-2:1987; or

- (b) if made of copper—comply with the relevant requirements in BS 1566-1:2002+A1:2011 and BS 1566-2:1984.
- 11. A system incorporating an unvented thermal storage type electric water heater must be provided with—
 - (a) a pipe that branches off from the supply pipe at a point above the top of the water heater, or some other devices that prevent water from draining down from the water heater if the water supply at the source fails;
 - (b) an anti-vacuum valve that complies with the relevant requirements in BS EN 13959:2004 and BS EN 14451:2005, or some other devices that prevent heated water from being syphoned back to the supply pipe; and
 - (c) a vessel that accommodates the expansion of heated water if that expansion is constrained by a non-return valve, or a similar device, incorporated at the inlet of the water heater.

(L.N. 81 of 2017)

Part 5

Flushing Apparatus

- 1. A flushing cistern must be fitted with a flushing device of the valveless syphonic or valve type. A stop valve must be fixed in a readily accessible position so as to control the water supply to the cistern.
- 2. A flushing cistern for a water-closet fitment or slop sink must be capable of giving a flush of not more than 15 L of water on each occasion the fitment is used.

3. The capacity of the flushing cistern in the case of trough water-closets and urinals shall be approved by the Water Authority subject to the discharge in the case of trough water-closets being not less than 9 litres of water for every metre of the channel and the discharge in the case of urinals being not less than 4.5 litres of water for every basin or stall, or in the case of a trough urinal, every metre thereof.
4. The internal diameter of flushing pipes shall—
 - (a) in the case of water-closet fitments, trough water-closets and slop sinks, be not less than 30 mm;
 - (b) in the case of urinals (other than trough urinals), be not less than 15 mm for each basin and stall; and
 - (c) in the case of trough urinals, be not less than 15 mm for every metre thereof.
5. A flushing apparatus must be operated by mechanical means or a sensor. In the case of an automatic flushing apparatus, the method of control and the volume and frequency of the flushes must be designed to ensure adequate cleaning.
6. A flushing cistern operated by mechanical means or a sensor must be fitted with a ball float valve that is arranged to refill the cistern within 2 minutes.
7. A flushing cistern must in all cases be supplied from a cistern. Except with the written permission of the Water Authority, the cistern must not be used to supply any other apparatus, appliance or fitting. The cistern must be fitted with a suitable close fitting cover and provided with appropriate access to enable the cistern to be entered and cleaned.

8. Every flushing cistern shall have an overflow which shall discharge in a conspicuous position.
9. A trough water-closet or urinal must be fitted with a flushing cistern.
10. A water-closet fitment or slop sink must be fitted with a flushing cistern. However, a pressure flushing valve may be installed for flushing without the provision of a flushing cistern if there is a suitable head of water.
11. Flushing valves must comply with the relevant requirements in BS EN 997:2012+A1:2015 and BS EN 15091:2013.

(L.N. 252 of 1977; L.N. 81 of 2017)

Part 6

Baths, Lavatory Basins and Sinks

1. Every inlet to a bath, lavatory basin or sink shall be distinct from, and unconnected with, any outlet therefrom and every outlet for emptying such bath, lavatory basin or sink shall be provided with a well-fitting and easily accessible watertight plug or some other equally suitable apparatus.
2. The level of the point of discharge of hot or cold water to a bath, lavatory basin or sink shall be above the level of the overflow, or if there be no overflow, of the top edge of the bath, basin or sink.
3. The water supply to any bidet, sitz bath, slop or sluicing sink or similar apparatus, shall, if the inlet is liable to be submerged, be provided by—

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- (a) a cistern supplying water to such apparatus only;
 - (b) a cistern for flushing purposes only; or
 - (c) a hot water distribution system supplying such apparatus only. (*L.N. 81 of 2017*)
- 4. All taps supplying baths, lavatory basins, sinks or similar apparatus shall have a stop valve fixed in a readily accessible position to control the supply to each fitting or branch pipe supplying a range of fittings.